

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)

Writ Petition No. 4920 of 2025

IN THE MATTER OF:

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh.

-AND-

IN THE MATTER OF:

Md. Eftekharul Islam

.....Petitioner

-Versus-

Present:
Mr. Justice Sashanka Shekhar Sarkar
And
Justice Urmee Rahman

The Government of the People's Republic
of Bangladesh, represented by the
Secretary, Ministry of Disaster
Management and Relief and others

..... Respondents

Ms. Amatul Karim, Advocate with
Mr. Md. Motiar Rahman, Advocate

...For the petitioner

Mr. Sajed Sami Ahammad, Advocate with
Mr. Md. Jakaria Khan, Advocate

...For the Respondent No. 2

Heard on 12.05.2026 and 07.07.2026

Judgment on 26.07.2026

Urmee Rahman, J:

In the instant writ petition Rule was issued in the following
terms:

*“Let a Rule nisi be issued calling upon the
Respondents to show cause as to why a direction
should not be given upon the respondents to pay all the
retirement benefits of the petitioner as he lawfully
entitled to get the same from the date as he was
allowed to go on retirement and/or pass such other or*

further order or orders as to this Court may seem fit and proper.”

Relevant facts for disposal of the matter, in brief, are that, the petitioner joined as District Relief and Rehabilitation Officer on 13.02.1989 in the Department of the Disaster Management, under the Ministry of Disaster Management and Relief. Thereafter, he was promoted to the post of ‘Deputy Director’ on 01.10.2006 and he was given the current charge of the vacant post of ‘Director’ on 22.03.2009. Lastly, he was given promotion to the post of Director on 22.10.2012. As per Rule 43(1)(a) of the Government Employment Scheme, 2018 (Act No. 57 of 2018), the petitioner was allowed to go on PRL on 09.09.2021 and he retired as ‘Director’ with effect from 09.09.2022. Earlier, vide memo dated 06.01.2019 issued by the Ministry of Finance, Finance Division all pension granting authorities were directed to refrain from unintended and illegal practice of non-payment of pension benefits or delay in granting permission due to non-completion of audit report of any period of service of the retired employees. But the respondents refrained from disbursing petitioner’s pension benefits as yet.

Being aggrieved thereby the petitioner served a Notice Demanding Justice upon the respondents on 07.04.2025 praying for disbursement of his lawful entitlement of pension benefits, however, no response has been made thereto till date. Finding no other alternative and equally efficacious remedy available, the

petitioner has filed the instant Writ Petition and obtained the present Rule.

Ms. Amatul Karim with Mr. Md. Motiar Rahman, learned Advocates appearing on behalf of the petitioner submitted that, after completion of unblemished service the petitioner is lawfully entitled to get his pension benefit in due course but the respondents have been refrained from making the disbursement and verbally denying the same without any valid reason in gross violation of law.

Learned Advocate next submitted that, retirement benefit is a property within the meaning of Article 152 of the Constitution of Bangladesh and the Constitution provides that no person shall be deprived of his property save and except by the authority of Law. The duty of the state to disburse the pension immediately on the retirement of an employee is obligatory. Withholding and denying the pension benefits to the petitioner is liable to be declared illegal and without any lawful basis.

She strongly submitted that, considering the Bangladesh Service Rules (BSR) Part I, Rules 242-505, there is no statutory basis for the sanctioning authority not to pay pension wages or making any delay in processing the sanction of pension if any period of service of the employee remains unaudited and as such the respondents are required to be directed to pay the pension benefits to the petitioner forthwith.

She forcefully submitted that, respondents have illegally detained the money of the petitioner. After having served for 31 (thirty one) years, it was the bona fide and legitimate expectation of the petitioner that he would be paid his entitled retirement benefits immediately after his retirement. Despite submitting repeated representations and service of legal notice upon the authority, it is not disbursing the pension benefits to the petitioner in a mala fide and in an arbitrary manner.

By filing a supplementary affidavit dated 22.05.2025 learned Advocate for the petitioner further submitted that, there were as many as 8 (eight) officials designated to the post of Deputy Director, who worked under the petitioner's supervision and gone on retirement, have been paid full pension benefits without any objection. But the authority is withholding the lawful entitlement of the petitioner in an unlawful manner.

She also submitted that, the petitioner applied for pension in due process on 28.06.2022 and the department of Disaster Management opined that there are no owing of the Department from the petitioner and forwarded his documents to the Secretary, Ministry of Disaster Management and Relief vide memo dated 21.08.2022. Hence, the respondents are lawfully obligated to make payment of the petitioner's pension benefits at once.

Learned Advocate finally submitted that, if there is any audit objection during the service period of the petitioner, that should be resolved within the specified period of 3 (three) months as per the

Public Servants' Pension Simplification Order, 2020. That stipulated period has already elapsed much earlier on 28.09.2022. Therefore, the petitioner is entitled to get the full pension and service benefits with interest for the willful delay committed by the respondent authority. In support of her submission she placed reliance on the case of *A. J. Randhawa Supdg. Engineer (Retd.) vs. State of Punjab and others* reported in (1997) 117 PLR 6. In this case the authority was directed to grant pension benefits with interest because of the delay in making the lawful entitlement of the petitioner.

Conversely, learned Advocates Mr. Sajed Sami Ahammad with Mr. Md. Zakaria, entered appearance on behalf of the respondent No. 2 i.e. the Director General (DG) of Department of Disaster Management and Relief and contested the Rule by filing an affidavit in opposition.

Learned Advocate submitted that, the petitioner served as a Director in different sectors of the Department of the Disaster Management, Dhaka. During his service, as many as 8 (eight) audit objections were raised against him in respect of Taka 220 Crore in yearly Audit Report of the Comptroller and Auditor General of Bangladesh (C&AG) and 2 (two) audit objections still remained unresolved. For this reason his pension benefits are not being disbursed. There is no willful inaction on behalf of the respondent authority.

He further submitted that, the Broad Sheet (BS) reply to the audit objections raised against the petitioner was sent several times to Directorate of Audit. The tri-partite meetings on the audit objections were held recommending for settlement of the same. However, it was not accepted as being settled by the Directorate of Social Safety and Audit.

He next submitted that, the Comptroller and Auditor General of Bangladesh (C&AG), being empowered by the Constitution, plays a crucial role in public sectors auditing, ensuring that the public funds are spent in accordance with law. The audit observations were raised against the petitioner during his service in the C&AG's report and the same are remained unsettled. Hence, the petitioner cannot get his retirement benefits until the audit objections raised against him are fully settled.

It is the contention of the learned Advocate that, the respondents have taken necessary steps for settlement of the audit observations raised against the petitioner by sending Broad Sheet reply and holding tri-partite meetings on the audit objections. They acted with utmost good faith. There is no mala fide intention or arbitrariness on the part of the respondents in not paying the retirement benefits to the petitioner and as such the Rule issued by this Hon'ble Court may kindly be discharged.

He also submitted that, pursuant to Clause 'Kha' of Order 4.10 of the "সরকারি কর্মচারীগণের পেনশন সহজীকরণ আদেশ, ২০২০" the petitioner cannot claim his retirement benefits until the audit

objections raised against him in the C&AG's report are finally settled.

Learned Advocate finally submitted that, the grievance of the petitioner has arisen out of his service as a public servant and the writ petition is filed for direction to pay the pension and service benefits to him. Under the statutory provisions of the country, the petitioner could seek the remedies available in other alternative forum, if he has any legal claim. As such the instant writ petition is not maintainable as the petitioner had statutory efficacious alternative remedy available. Hence, the Rule issued in the instant writ petition is liable to be discharged.

We have heard the learned Advocates for the respective parties and perused the writ petition and as well as all the documents annexed therewith.

Since the learned Advocate appearing for Respondent No. 2 has agitated the question of maintainability of the instant writ petition, we deem it appropriate to address this issue at the outset.

The petitioner has invoked the writ jurisdiction of this Court by way of a petition in the nature of Mandamus, seeking a direction upon the respondents to disburse the pension benefits to which he is lawfully entitled following his retirement from service. There is no dispute either as to the petitioner's service or as to his entitlement to the pension benefits. It is, however, evident that such benefits have not yet been disbursed owing to an unresolved audit objection before the Comptroller and Auditor General of Bangladesh.

It is pertinent to observe that the petitioner has not approached this Court for the purpose of establishing or determining his right to pension. Rather, he has invoked the writ jurisdiction of this Court seeking a direction in the nature of mandamus commanding the respondents to perform an act which they are otherwise legally bound to perform.

In the circumstances, where the petitioner's entitlement is undisputed and the respondents' obligation to discharge the corresponding statutory duty is apparent, we are of the considered view that the instant writ petition is maintainable in its present form, being a proper invocation of the jurisdiction of this Court under Article 102(2)(1)(i) of the Constitution of the People's Republic of Bangladesh.

It is admitted that the petitioner went on Post Retirement Leave (PRL) on 09.09.2021 and he was supposed to go on retirement on completion of one year i.e. on 09.09.2022. Accordingly on 28.06.2022 he made a representation before the authority praying for granting his monthly retirement allowance as well as gratuity allowance.

It is evident from Annexure-I to the supplementary affidavit dated 27.05.2025 that, the respondent No. 2 by the memo dated 21.08.2022 categorically stated that there is no due against the petitioner by the department and therefore, sent the relevant documents to the concerned Ministry for granting the pension and other ancillary retirement benefits of the petitioner.

Annexure-I to the supplementary affidavit is reproduced below:

গণপ্রজাতন্ত্রী বাংলাদেশ সরকার
দুর্যোগ ব্যবস্থাপনা অধিদপ্তর
দুর্যোগ ব্যবস্থাপনা ভবন
৯২-৯৩ মহাখালী বা/এ, ঢাকা-১২১২
www.ddm.gov.bd

স্মারক নং ৫১.০১.০০০০.০০৩.০১৮.০০৫.১০.৯৮১

তারিখ: ২১.০৮.২০২২ খ্রি.

বিষয়: জনাব মোঃ ইফতেখারুল ইসলাম, পরিচালক (পিআরএল ভোগরত), দুর্যোগ ব্যবস্থাপনা অধিদপ্তর, ঢাকা এর এককালীন পেনশন আনুতোষিক ও মাসিক অবসরভাতা মঞ্জুরি সংক্রান্ত।

উপর্যুক্ত বিষয়ের পরিপ্রেক্ষিতে সদয় অবগতির জন্য জানানো যাচ্ছে যে, জনাব মোঃ ইফতেখারুল ইসলাম, পরিচালক (পিআরএল ভোগরত), দুর্যোগ ব্যবস্থাপনা অধিদপ্তর, ঢাকা এর আগামী ০৯-০৯-২০২২খ্রি. তারিখ অবসরোত্তর ছুটি (Post Retirement Leave) শেষ হবে। সে অনুযায়ী তিনি বিধি মোতাবেক এককালীন পেনশন আনুতোষিক ও মাসিক অবসরভাতা মঞ্জুরির নিমিত্ত পেনশন ফরম পূরণ করে সংশ্লিষ্ট কাগজপত্র দাখিল করেছেন। এ অধিদপ্তরে তার নিকট পাওনা নেই।

০২। এমতাবস্থায়, জনাব মোঃ ইফতেখারুল ইসলাম, পরিচালক (পিআরএল ভোগরত), দুর্যোগ ব্যবস্থাপনা অধিদপ্তর, ঢাকা এর এককালীন পেনশন আনুতোষিক ও মাসিক অবসরভাতা মঞ্জুরির নিমিত্ত পেনশন ফরমসহ সংশ্লিষ্ট কাগজপত্র এতৎসঙ্গে প্রেরণ করা হলো।

সংযুক্ত: বর্ণনা মোতাবেক ২ সেট।

(মোঃ আতিকুল হক)
মহাপরিচালক
ফোন: ৫৮৮১৫৪৯৫
dg@ddm.gov.bd

সচিব

দুর্যোগ ব্যবস্থাপনা ও ত্রাণ মন্ত্রণালয়

বাংলাদেশ সচিবালয়, ঢাকা।

অনুলিপি:

০১। জনাব মোঃ ইফতেখারুল ইসলাম, পরিচালক (পিআরএল ভোগরত), দুর্যোগ ব্যবস্থাপনা অধিদপ্তর, ঢাকা।

It appears from the affidavit in opposition that an audit objection was raised by the office of the Comptroller and Auditor General, (C&AG), which is still unsettled. However, on meticulous examination of the documents annexed as Annexures- 1, 1-A, 2 and 2-A of the affidavit in opposition we do not find any specific allegation particularly against this petitioner regarding the objection

of 220 Crore Taka. It appears from Annexure-1(B) to the affidavit in opposition that, there is an objection raised by respondent No. 2 regarding an amount of 46,550 taka against the petitioner but the facts remains that, the respondent No. 2 has given clearance to petitioner in granting pension, as we have already seen from Annexure-I.

Moreover, it is evident from Annexure-3 to the affidavit-in-opposition that, by the memo dated 06.12.2020 issued by the concerned Ministry the petitioner was, in substance, exonerated from the allegations brought against him, as the authority having regard to the fact that he was due to retire shortly, chose to give him only a warning without imposing any punishment under the Service Rules of 2018.

Now it is required to examine the concerned provision of law regarding withholding pension benefits. Section 51 of the Public Servant Act, 2018 provides that, when a public servant goes on retirement, if there is any departmental proceeding or any criminal proceeding pending against him, he shall not be eligible to get the pension benefits.

There is no other specific condition mentioned in this Act which can disentitle an employee from having his pension benefits. “সরকারি কর্মচারীগণের পেনশন সহজীকরণ আদেশ, ২০২০ in clause 4.10 provides that:

“৪.১০ অডিট আপত্তি নিষ্পত্তি:

(ক) প্রশাসনিক কর্তৃপক্ষ অবসরগামী কর্মচারীগণের অনিষ্পন্ন অডিট আপতিসমূহ (যদি থাকে) পর্যালোচনা করিয়া নির্দিষ্ট সময়সীমার মধ্যে অডিট অধিদপ্তরে (প্রযোজ্য ক্ষেত্রে) জবাব প্রেরণ করিবেন। প্রয়োজনে সংশ্লিষ্ট অডিট অধিদপ্তরের সহিত দ্বি-পক্ষীয় ও ত্রি-পক্ষীয় সভার মাধ্যমে অডিট আপত্তি নিষ্পত্তির ব্যবস্থা গ্রহণ করিতে হইবে। অবসরগমনকারী কর্মকর্তা/কর্মচারীর বিরুদ্ধে উত্থাপিত অনিষ্পন্ন অডিট আপত্তি নিষ্পত্তির বিষয়ে অডিট অধিদপ্তরসমূহ সর্বোচ্চ অগ্রাধিকার প্রদান করিবে। কল্যাণ কর্মকর্তা এই বিষয়ে ফোকাল পয়েন্ট হিসেবে বিবেচিত হইবেন।

(খ) অবসরগমনকারী সরকারি কর্মচারীর বিরুদ্ধে অডিট আপত্তি থাকিলে/উত্থাপিত হইলে প্রশাসনিক কর্তৃপক্ষ কন্ট্রোলার এন্ড অডিটর জেনারেলের (সিএন্ডএজি) বার্ষিক অডিট রিপোর্টভুক্ত অডিট আপত্তি ব্যতীত অন্যান্য অডিট আপত্তিতে তার ব্যক্তিগত দায় আছে কিনা তাহা অনধিক ০৩ (তিন) মাসের মধ্যে নির্ধারণ করিবেন। অডিট আপত্তিতে অবসরগমনকারী কর্মকর্তা/কর্মচারীর ব্যক্তিগত দায় না থাকিলে যথারীতি পেনশন মঞ্জুর করিতে হইবে। ব্যক্তিগত দায় থাকিলে তাহা পেনশনারের নিকট হইতে আদায়পূর্বক অথবা তাহার প্রাপ্য আনুতোষিক হইতে কর্তনপূর্বক (পরবর্তীতে সমন্বয় সাপেক্ষে) পেনশন কেইস নিষ্পত্তি করিতে হইবে। অডিট আপত্তিতে সংশ্লিষ্ট প্রশাসনিক কর্তৃপক্ষ কর্তৃক যদি কোন ব্যক্তিকে দায়ী করা না হয় অথবা আর্থিক সংশ্লেষ না থাকে তবে উক্ত অডিট আপত্তির জন্য কোন সরকারি কর্মচারীর পেনশন মঞ্জুরিতে বিলম্ব করা যাইবে না।

(গ) উপর্যুক্ত (ক) ও (খ) উপ-অনুচ্ছেদে উল্লিখিত প্রশাসনিক কর্তৃপক্ষ বলিতে অর্থ বিভাগের ৩০-০৯-২০১৮ খ্রিঃ তারিখের জারীকৃত ০৭.০০.০০০০.১৭১.১৩.০১১.১৪-১১১ নং পত্রে উল্লিখিত কর্তৃপক্ষকে বুঝাইবে (সংযোজনী-১৬)।

(ঘ) অবসরগ্রহণকারী কর্মচারীর এক বা একাধিক কর্মস্থলের কোন সময়ের অডিট অসম্পন্ন থাকার কারণে তাহার পেনশন মঞ্জুরিতে বিলম্ব করা যাইবে না। এই বিষয়ে অর্থ বিভাগের ০৬-০১-২০১৯ খ্রিঃ তারিখের ০৭,০০,০০০০,১৭১.১৩.০০২.১৪-০১ নং পরিপত্র অনুসরণীয় হইবে (সংযোজনী-১৩)। কর্মচারীর অবসরগ্রহণের পর যদি পেনশনারের বিরুদ্ধে অডিট আপত্তি উত্থাপিত হয় এবং অডিট আপত্তিতে উক্ত কর্মকর্তা/কর্মচারীর ব্যক্তিগত আর্থিক সংশ্লেষ প্রমাণিত হয় তাহা হইলে প্রশাসনিক কর্তৃপক্ষের সিদ্ধান্তের আলোকে পেনশনার/পারিবারিক পেনশনারের নিকট থেকে অডিট আপত্তিতে উল্লিখিত অর্থ আদায় করা যাইবে।”

It is the clear stipulation of this Order that, if any employee is not held personally liable by the concerned administrative

authority, was no delay shall be made in granting his pension due to any audit objection.

In this provision though there is a time frame to resolve the audit objection by the administrative authority, nothing has been clearly stated as to the audit objection which remain unsettled by the Comptroller and Auditor General (C&AG) neither there is any stipulated time period mentioned within which the C&AG should settle the audit objection. Though it has been categorically provided that, highest preference shall be given in order to settle the audit objection regarding an employee who is going on retirement.

It is obvious from the provision of this Order, 2020 that it was the intention of the Government to simplify/facilitate the pension entitlement of a retired employee and to take necessary actions in order to disburse the pension benefits at the earliest possible opportunity.

It is an admitted position that the petitioner retired from service on attaining the age of superannuation in 2021. It is equally undisputed that no department proceeding or criminal proceeding is pending against him. The respondent no.2, who is the appointing authority of the petitioner, has candidly stated in the affidavit in opposition that they themselves have no claim whatsoever against the petitioner. The Ministry also exonerated him from the allegations by giving warning only. The sole ground put forwarded for withholding the pension benefits of the petitioner is an unsettled audit objection raised by the office of the C&AG.

This Court is unable to accept such contention. An audit objection, by itself, neither determines any liability nor creates an enforceable claim against a retired employee. Unless such objection culminates in a finding of liability in accordance with law or forms the basis of a duly initiated proceeding under the service rules, it cannot be relied upon to withhold pension benefits indefinitely.

It has been already settled in many cases by this Division as well as the Appellate Division that pension is not a matter of grace or virtue. It is a statutory right earned by an employee in consideration of his long and faithful service. Once the conditions prescribed by law are fulfilled, the retired employee acquires a corresponding right to receive his pension and other retirement benefits without unreasonable delay. Such right cannot be defeated by administrative inaction or by keeping an audit objection pending for an indefinite period.

In the present case, the continued inaction of the respondents in granting pension benefits to the petitioner is arbitrary, unreasonable and without any lawful authority.

It is also significant that the Government itself has adopted a policy decision requiring the authorities concerned to ensure expeditious settlement and disbursement of pensionary benefits and to avoid unusual delay in such matters. The impugned inaction of the respondents is plainly inconsistent with that declared policy of the Government and defeats its very objective.

A retired Government employee, having devoted his active years to public service, is entitled to receive his retiral benefits promptly so that he may live his post retirement life with dignity and financial security. To compel such a person to wait indefinitely to his lawful dues is manifestly unjust.

It transpires from the record that, during the pendency of this Rule the learned Advocate for the petitioner by filing an application for addition of parties made the Comptroller and Auditor General (C&AG) as added respondent Nos. 4-7. Though notices were served upon them in due course, they neither appeared before this Court nor made any submissions regarding their gross failure in resolving the unsettled audit objection regarding the petitioner after a long period of 5 (five) years from the date of his retirement. This unexplained delay committed by the added respondent Nos. 4-7 is thus found to be arbitrary and without any lawful authority.

Learned Advocate for the petitioner advanced an submission referring to the case reported in *117 PLR 6* mentioned hereinabove that, in that case the High Court of **Punjab** and **Hariyana** directed the authority to grant pension benefits with 12% interest per annum for the period of delay on the amounts to the pensioners since there was no satisfactory explanation for the delay in disbursing the pension benefits. Since this prayer is beyond the terms of Rule, we are not inclined to consider this submission.

In view of the findings and discussion made hereinabove, we therefore find merit in the instant Rule.

Accordingly, the Rule is made absolute.

There is no order as to cost.

The respondents are hereby directed to disburse the lawful entitlement of pension and service benefits to the petitioner within 30 (thirty) days from the date of receipt of a copy of this judgment and order without fail, regardless of any unsettled audit objection before the Comptroller and Auditor General (C&AG). The C&AG is also directed to resolve the pending audit objection immediately giving highest preference to it.

Communicate the judgment and order at once.

Sashanka Shekhar Sarkar, J:

I agree.